

19STCV20502 19STCV20502

County: los-angeles

Division: Civil Law and Motion

Department: 224

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Case Number: 19STCV20502 Hearing Date: June 25, 2026 Dept: 224

SC&P Resources, Inc. v. Hermes Capital, Inc.

The Court DENIES the motion to Vacate Wage Garnishment.

The motion is denied on a number of grounds.

The Motion is internally inconsistent and fails to clearly identify the relief sought. Whil captioned as a motion to vacate the wage garnishment order, the memorandum of points and authorities, and declaration repeatedly reference vacating a "default" and "default judgment." The Court has reviewed the docket in this case, and there is no default judgment, nor has moving party filed an exhibit constituting the alleged default judgment it asks this court to vacate.

The Court has verified that Judgment was entered after a court trial where Judgment Debtors were represented by counsel.

With respect to the request to vacate the Order permitting the wage garnishment of debtor's spouse, that is DENIED without prejudice for the Court to hear the debtor spouse's claim of exemption.

Accordingly, the Motion is DENIED, because Judgment Debtors failed to satisfy Code of Civil Procedure section 473(b), Judgment Debtors exclusively rely on C.C.P. § 473(b), yet fail to attach the required proposed pleading as required by the statute. Moving party asks the Court to allow it to oppose the motion permitting wage garnishment. To obtain 473(b) relief, the moving party is required to file the pleading it would have filed - in this case an opposition to the motion -- had the moving party not received notice of the motion.